

See LINE 8 above.

13. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS SET 1 ON PETER DOCTER**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

14. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST, N.A.**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

15. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO RFPS (SET ONE) PROPOUNDED ON DEFENDANT COMERICA BANK & TRUST; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86; MEMO OF P&AS**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

16. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

See LINE 8 above.

17. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MASOUDI, ELISABETH B.
TENTATIVE RULING:

Before the Court is Defendant Elisabeth Masoudi's ("Ms. Masoudi" or "Defendant") demurrer. The demurrer relates to Plaintiff Robert Rodriguez's ("Plaintiff" or "Mr. Rodriguez") First Amended Complaint for (1) Intentional Interference with Prospective Economic Advantage; (2) Negligent Interference with Prospective Economic Advantage; (3) Conversion/ Embezzlement (Pen. Code section 503); (4) Civil Conspiracy; (5) Equitable Enforcement of Lien and Accounting; (6) Constructive Trust; (7) Declaratory Relief; (8) Intentional Misrepresentation, Concealment, Deceit and Fraud; and (9) Negligent Misrepresentation.

Pursuant to California Code of Civil Procedure section 430.10, Defendant demurs to the seven causes of action alleged against her in Plaintiff's First Amended Complaint – (1) Conversion/ Embezzlement (Pen. Code section 503); (2) Civil Conspiracy; (3) Equitable Enforcement of Lien and Accounting; (4) Constructive Trust; (5) Declaratory Relief; (6) Intentional Misrepresentation, Concealment, Deceit and Fraud; (7) Negligent Misrepresentation – on the grounds that all causes of action alleged against Ms. Masoudi are barred by the applicable statutes of limitations, Mr. Rodriguez never had a valid, enforceable charging lien as a matter of law, and Mr. Rodriguez fails to allege facts sufficient to establish any of the alleged causes of action.

Plaintiff, who is representing himself *in propria persona*, opposes Defendant's demurrer on the grounds that (1) Defendant's request for judicial notice is improper, (2) the First Amended Complaint pleads delayed discovery and fraudulent concealment with sufficient particularity to preclude a statute of limitations ruling on demurrer, (3) Plaintiff's present claims are tort-based and protect different primary rights than the previously-dismissed 2019 fee contract action, (4) Plaintiff has adequately pled the existence of a valid attorney's charging lien created by written agreement and notice, (5) Defendant's alleged concealment and impairment of that lien gives rise to liability under California law, and (7) the causes of action are adequately pled.

For the following reasons, Defendant's demurrer to Plaintiff's First Amended Complaint is **SUSTAINED in its entirety WITH LEAVE TO AMEND**.

Request for Judicial Notice

Defendant requests that the Court take judicial notice of (1) Plaintiff's Complaint filed in the action